

Article 1 — Definitions and Parties

This Sale and Purchase Agreement (the "Agreement") is entered into between Vantage Point Developments LLC (the "Developer") and the party identified in Schedule 1 (the "Purchaser") for the sale and purchase of Unit ST-06-11 within the project known as Creek Horizon Tower (the "Project"), located on Plot No. CH-227, Dubai Creek Harbour, Dubai, United Arab Emirates (the "Unit").

1.2 "Practical Completion" means the date on which the Developer, in its sole determination, considers the Unit substantially ready for occupation, notwithstanding that certain common area works, landscaping, or retail podium fit-out may remain ongoing.

1.3 "Purchase Price" means the total consideration payable by the Purchaser for the Unit as set out in Schedule 2, exclusive of the Oqood registration fee, the Dubai Land Department transfer fee, and any applicable value added tax.

1.4 References to the "Specifications" mean the finishes, fixtures, layout, and materials described in Schedule 3, which are provided for illustrative guidance and remain subject to Clause 12 of this Agreement.

Article 4 — Purchase Price and Payment Terms

4.1 The Purchase Price for the Unit is AED 840,000 (Dirhams Eight Hundred and Forty Thousand only), payable in accordance with the payment schedule set out in Schedule 2 and further detailed in the Payment Plan issued to the Purchaser.

4.2 The Purchaser shall pay a booking deposit of AED 42,000, equivalent to 5% of the Purchase Price, upon execution of the reservation form, with a further AED 42,000 due within 30 days of signing this Agreement, together constituting 10% of the Purchase Price.

4.3 Instalments due after Practical Completion shall continue in accordance with Schedule 2 regardless of whether the Purchaser has taken physical possession, obtained a tenant, or completed snagging, save where the Developer has failed to issue a valid Handover Notice under Clause 9.

4.4 The Developer shall be entitled to apply any payment received from the Purchaser first against outstanding late payment charges, then against the oldest outstanding instalment, before any amount is credited toward the current instalment due.

Article 9 — Handover and Completion

9.1 The Developer shall use reasonable commercial endeavours to achieve Practical Completion and deliver Handover by the end of Q2 2029 (the "Anticipated Completion Date"), subject to a grace period of twenty-four (24) months from the Anticipated Completion Date (the "Grace Period") during which no compensation, penalty, or right of termination shall accrue to the Purchaser on account of delay.

9.2 The Grace Period shall be further extended, without limit, by any period during which a Developer Delay Event has occurred, which for the purposes of this Agreement includes delays attributable to the Developer's contractors, subcontractors, or consultants, in addition to the Force Majeure Events described in Clause 16.

9.3 Should Handover not occur following expiry of the Grace Period as extended under Clause 9.2, the Purchaser's sole remedy shall be to serve written notice on the Developer, and if Handover does not occur within 120 days of such notice, the Purchaser may elect to terminate this Agreement subject to Clause 14.

9.4 The Developer shall notify the Purchaser in writing not less than 30 days prior to the anticipated Handover Date. The Purchaser shall attend a joint snagging inspection within 7 days of such notice, failing which the Unit shall be deemed accepted in its condition as handed over.

Article 11 — Service Charges and Owners Association

11.1 The initial estimated service charge is AED 16 per sqft per annum, provided that this estimate is indicative only and is not binding on the Developer or any subsequently formed Owners Association.

11.2 The Developer may adjust the estimated service charge without limitation to reflect prevailing market rates for comparable developments in Dubai Creek Harbour, changes in utility costs, or the scope of shared amenities ultimately delivered, and no maximum annual increase or cap of any kind shall apply to such adjustments.

11.3 Following formation of the Owners Association, the annual service charge budget shall be determined by the Owners Association in accordance with applicable law, provided that until such formation, the Developer's determination of the service charge shall be final and binding on the Purchaser.

11.4 The Purchaser acknowledges that shared facility costs, including any amenities added to the Project after the date of this Agreement, may be apportioned across all units notwithstanding that such amenities were not contemplated at the time of purchase.

Article 14 — Default and Termination

14.1 If the Purchaser fails to pay any instalment within 15 days of its due date, the Developer shall issue a written notice affording the Purchaser a cure period of 10 days from the date of such notice within which to remedy the default.

14.2 If the Purchaser fails to remedy the default within the cure period referred to in Clause 14.1, the Developer may terminate this Agreement by written notice, in which case the Developer shall be entitled to retain up to 40% of the Purchase Price as agreed liquidated damages, calculated based on the proportion of the Purchase Price paid at the date of termination, with any balance refunded only after resale of the Unit to a third party and without interest.

14.3 Where termination occurs after Practical Completion has been achieved, the Developer shall be entitled to retain the full 40% referred to in Clause 14.2 regardless of the amount actually paid by the Purchaser as at the date of termination, and may pursue the Purchaser for any shortfall.

14.4 The Purchaser waives any right to claim that the liquidated damages set out in this Clause 14 are excessive or disproportionate to the Developer's actual loss, save as may be mandatorily required by UAE law.

Article 16 — Force Majeure

16.1 "Force Majeure Event" means any event beyond the reasonable control of the Developer, including but not limited to acts of God, war, epidemic, governmental action, changes in law, shortage of materials or labour, contractor insolvency, adverse weather, and any other circumstance the Developer determines, acting reasonably, to be beyond its control.

16.2 Upon the occurrence of a Force Majeure Event, the Developer's obligations under this Agreement, including the obligation to achieve Handover by the Anticipated Completion Date, shall be suspended for the duration of the Force Majeure Event and any reasonable period required to recover from its effects.

16.3 No compensation, discount, rebate, or other remedy shall be payable or available to the Purchaser in respect of any delay, cost increase, or other consequence arising from a Force Majeure Event, and the Purchaser shall continue to be liable for all instalments falling due during the Force Majeure Event.

16.4 The Developer shall notify the Purchaser of a Force Majeure Event within 60 days of its occurrence, provided that failure to provide such notice within this period shall not invalidate the Developer's reliance on this Clause 16.

Article 12 — Specifications and Variations

12.1 The Specifications set out in Schedule 3 are indicative and the Developer reserves the right, at its sole discretion, to substitute materials, finishes, brands, or fixtures with alternatives of comparable or better quality, without the Purchaser's consent and without any adjustment to the Purchase Price.

12.2 The Developer reserves the right to make variations to the design, layout, or unit boundaries of the Unit or the Project of up to 5% of the Unit's total area, provided that any reduction beyond 5% shall entitle the Purchaser to a pro-rata reduction in the Purchase Price calculated on the same per-square-foot basis as the original sale.

12.3 The Developer may also alter the specification, number, or configuration of shared amenities described in the brochure or marketing materials, provided that such marketing materials do not form part of this Agreement and shall not be relied upon by the Purchaser as contractual commitments.

12.4 The Purchaser acknowledges having read and accepted this Clause 12 as a condition of entering into this Agreement, and waives any claim arising from variations made in accordance with this Clause.

Article 17 — Assignment and Resale

17.1 The Purchaser may not assign, sell, or otherwise transfer its rights under this Agreement prior to Practical Completion without the prior written consent of the Developer, which consent may be granted or withheld at the Developer's sole discretion.

17.2 Any permitted assignment shall be subject to payment of an administrative and No Objection Certificate (NOC) fee equal to 2% of the Purchase Price, payable by the Purchaser prior to issuance of the NOC, in addition to any outstanding instalments which shall become immediately due upon assignment.

17.3 The Developer may, at its discretion, decline to issue an NOC where less than 50% of the Purchase Price has been paid, irrespective of whether the proposed assignee is willing to assume all remaining obligations under this Agreement.

17.4 The Developer shall have no obligation to issue or reject an NOC request within any specified timeframe, and any delay in processing shall not give rise to any claim by the Purchaser.